25STCV12459 25STCV12459

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-08-11

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Case Number: 25STCV12459 Hearing Date: August 11, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.
Kalra, Department 511

HEARING DATE: August
11, 2026

CASE NAME: Else
van Zandwijk v. Paul Oakenfold

CASE NO.: 25STCV12459

MOTION
TO AMEND JUDGMENT

MOVING PARTY: Plaintiff/Judgment
Creditor Else van Zandwijk

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An
order amending the April 23, 2026 judgment to include judgment debtor's alter
egos: Paul Oakenfold, as Trustee of the Oakenfold Family Trust u/d/t dated
September 21, 2007; Oakenfold Corp.; and Bunkka Touring, Inc.

TENTATIVE RULING:

1. Motion
to amend judgment is GRANTED in part and DENIED in part, without prejudice.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On April 29, 2025, Plaintiff Else van Zandwijlk (Plaintiff) filed a complaint against Defendant Paul Oakenfold (Defendant) with causes of action for: (1) breach of contract.

According to the complaint, the parties had an agreement to disburse certain sums of $500,000 following the sale of real property located at 5649 Valley Oak Drive, Los Angeles, California 90068. Plaintiff alleges the sale closed on February 5, 2025 but Defendant refused to perform.

On July 7, 2025, Defendant filed an answer.

On July 23, 2025, Defendant filed a motion for leave to file a cross-complaint which the court GRANTED.

On August 18, 2025, Defendant/Cross-Complainant filed a cross-complaint against Else van Zandwijk with causes of action for: (1) breach of written contract; (2) conversion; (3) intentional interference with prospective economic advantage; (4) intentional interference with contract; (5) intentional infliction of emotional distress; and (6) declaratory relief.

On September 3, 2025, Plaintiff/Cross-Defendant filed an answer to the cross-complaint.

On February 23, 2026, the matter was called for non-jury trial and was continued after Defendant’s oral request.

On April 10, 2026, the court dismissed the cross-complaint with prejudice pursuant to oral request.

On April 23, 2026, the court entered judgment on stipulation that was stated in open court and on the record in Plaintiff’s favor for a total judgment of $562,482.73 consisting of $500,000 in damages; $59,453.66 in prejudgment interest; and $3,029.07 in costs.

On June 15, 2026, Plaintiff filed the instant motion to amend judgment to include judgment debtor's alter ego controlled businesses and trust. Oppositions were due on or before July 29, 2026. As of August 6, 2026, the court has not received any opposition.

LEGAL STANDARD:

Under Code of Civil Procedure, section 187¿¿¿

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When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable¿process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.¿¿¿

¿¿¿

(Code Civ. Proc., § 187.) This section empowers the Court to "use all the means necessary" to carry its¿jurisdiction¿into effect.¿ The Court therefore has authority in certain circumstances to amend a judgment against a corporation (or other entity) to add as a judgment debtor the entity's nonparty "alter ego" who controlled the underlying litigation.¿ In effect, "amending a judgment to add an alter ego does not add a new defendant but instead inserts the correct name of the real defendant." (Misik v. D'Arco¿(2011) 197 Cal.App.4th 1065, 1072-1073 [complaint only named LLC, which was totally controlled by individual].)¿ It is not necessary that¿alter ego doctrine¿be alleged or proved in the underlying lawsuit. (Id. at 1074-1075;¿Danko v. O'Reilly¿(2014) 232 Cal.App.4th 732, 741.)¿¿

ANALYSIS:

Plaintiff contends it is proper to amend the judgment to include Defendant's alter egos: Paul Oakenfold, as Trustee of the Oakenfold Family Trust u/d/t dated September 21, 2007 (the Trust); Oakenfold Corp.; and

Bunkka Touring, Inc. (Bunkka). She contends the Trust was established by Defendant who is also the trustee whose sole purpose was to hold real property which he sold at a significantly discounted price as an attempt to shield the asset from Plaintiff. She contends that Oakenfold Corp. is an alter ego because Defendant used those bank accounts to pay for personal expenses and he is the sole officer and director of that entity. The same reasoning applies to Bunkka Touring, Inc.

Defendant did not file an opposition.

Plaintiff, as the judgment creditor, must show: “(1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer existed; and (3) an inequitable result will follow if the acts are treated as those of the entity alone.”¿ (JPV I L.P. v. Koetting¿(2023) 88 Cal.App.5th 172, 194 (JPV); see also Greenspan¿v. LADT, LLC¿(2010) 191 Cal.App.4th 486, 511 (Greenspan) [identifying¿these requirements as two items rather than three items].)¿ Whether the evidence has¿established¿that the corporate veil should be ignored is primarily a question of fact which should not be disturbed when supported by substantial evidence.” (Id.¿at 512; quoting¿Las Palmas Associates v. Las Palmas Center Associates¿(1991) 235 Cal.App.3d 1220, 1248.) While alter ego is an extreme remedy and sparingly used, courts are allowed “the greatest liberality” in amending judgments to add the “real defendant or alter ego of the original judgment debtor in order to see that justice is done.” (JPV, supra, at p. 189.)¿¿¿

There are various relevant factors in applying the alter ego doctrine including:¿¿

“one individual's ownership of all stock in a corporation; use of the same office or business location; commingling of funds and other assets of the individual and the corporation; an individual holding out that he is personally liable for debts of the corporation; identical directors and officers; failure to maintain minutes or adequate corporate records; disregard of corporate formalities; absence of corporate assets and inadequate capitalization; and the use of a corporation as a mere shell, instrumentality or conduit for the business of an individual . . . the use of the corporate entity to procure labor, services or merchandise for another person or entity" and "the diversion of assets from a corporation by or to a stockholder or other person or entity, to the detriment of creditors."¿¿

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(Id.¿at p. 195.
[citing¿Misik, supra,¿at p. 1073 and¿Greenspan, supra,¿at p. 513.]) Courts may also narrowly focus on "certain inequitable uses of the corporate form for specific purposes" where disregarding the corporate form is¿appropriate while¿leaving it intact for all other purposes. (Ibid.¿[citing¿Kohn v. Kohn¿(1950) 95 Cal.App.2d 708.])¿¿

Here, there is sufficient evidence supporting alter ego liability, in part. To start, there is sufficient evidence of unity of interest and ownership as to Bunkka and the Trust. First, Plaintiff does provide evidence that the Trust, Oakenfeld Corp., and Bunkka paid child support on behalf of Defendant. (Declaration of Else van Zandwijk (Zandwijk Decl.) ¶ 5.) This shows commingling of funds between the entities and Defendant personally. Second, as to Bunkka, Plaintiff provides evidence that Defendant is the chief operating officer and secretary of chief financial officer since its inception in February 2007. (Declaration of Omar J. Yassin (Yassin decl.) at ¶ 7.) She also provides evidence that Bunkka operates from Defendant's business manager's office. (Ibid.) Considering together
that Bunkka paid Defendant's personal child support obligations, he holds two corporate roles, and its address belongs to his business manager strongly supports a finding as to Bunkka that it is a mere shell of Defendant. Third, as to the Trust, Plaintiff provides evidence that Debtor is the sole trustee of the trust.

However, Plaintiff has no evidence of Oakenfeld Corp.'s
location or formal corporate operating documents. (Yassin Decl. at ¶ 6.) This precludes the court's ability to analyze other factors. Similarly, the evidence for the Trust is speculative. (Id. at
¶ 5 ["may have been transferred"].) There is no evidence that Defendant created the Trust to shield assets from Plaintiff. The opposite: he created the Trust in 2007 well before this lawsuit. (Id.
at ¶ 4.) Thus, there is insufficient evidence that Oakenfeld Corp. and the Trust are Defendant's alter egos.

Finally, Plaintiff provides sufficient evidence of an inequitable result. Plaintiff's evidence on an inequitable result is based on Defendant's ceased child support payments, ceased communications with her, is a foreign national, intends to pursue international tours after July 18, 2026, which adequately supports her belief that he intends to relocate his life and business operations outside of the United States to avoid this judgment. (Id. at ¶¶ 8-9, 11-12.)

Accordingly, the court GRANTS the motion to amend the judgment as to Bunkka and the Trust, and DENIES the motion to amend the judgment without prejudice as to Oakenfield Corp.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion to amend judgment is GRANTED in part and DENIED in part without prejudice.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 11, 2026 ___________________________________ Upinder S. Kalra

Judge of the Superior Court